



Master Cloud Hosting & Infrastructure Services Agreement

AGREEMENT NO.	STR-2023-0417
PROVIDER	Stratus Cloud Infrastructure, Inc. ("Provider"), a Delaware corporation with offices at 200 Beacon Tower, Austin, TX 78701
CUSTOMER	Contoso Marketing, LLC ("Customer"), a marketing agency with offices at 1450 Harborview Avenue, Suite 600, Seattle, WA 98101
EFFECTIVE DATE	July 1, 2023

This Master Cloud Hosting & Infrastructure Services Agreement (this "Agreement") is entered into as of the Effective Date by and between the Provider and the Customer identified above (each a "party" and together the "parties").

1. RECITALS

Customer wishes to procure managed cloud hosting, compute, storage, and content-delivery services for its production and staging workloads, and Provider agrees to furnish such services subject to the terms below.

2. DEFINITIONS

- 2.1 "Services"** means the managed virtual compute, object and block storage, content delivery, and associated monitoring described in **Exhibit A (Service Order)**.
- 2.2 "Customer Data"** means all data, content, and materials uploaded, stored, or processed by or on behalf of Customer through the Services.
- 2.3 "Renewal Date"** means each anniversary of the expiration of the Initial Term as defined in Section 4.

3. SERVICES AND SERVICE LEVELS

- 3.1** Provider shall provide the Services in accordance with the **99.95% monthly uptime** commitment set out in **Exhibit B (SLA)**. Service credits are Customer's sole remedy for failure to meet the SLA.
- 3.2** Provider shall maintain commercially reasonable disaster-recovery capabilities with a recovery point objective (RPO) of four (4) hours.

4. TERM AND RENEWAL

- 4.1 Initial Term.** This Agreement commences on the Effective Date and continues for an **initial term of three (3) years**, expiring **June 30, 2026**.
- 4.2 Automatic Renewal.** Upon expiration of the Initial Term, this Agreement shall **automatically renew** for successive **one (1) year** renewal terms (each a “Renewal Term”) **unless** either party delivers written notice of non-renewal **no later than ninety (90) days** before the then-current term expires.
- 4.3** The first Renewal Date is **July 1, 2026**. To prevent the renewal commencing July 1, 2026, written non-renewal notice must have been received on or before **April 2, 2026**.

5. FEES AND PAYMENT

- 5.1 Annual Committed Spend.** Customer shall pay an annual committed fee of **USD \$144,000**, invoiced monthly in arrears at **\$12,000 per month**, plus metered overage for usage above the committed tier per **Exhibit A**.

Annual committed fee: USD \$144,000 · **Billing:** \$12,000 / month, in arrears · **Payment terms:** Net 30

- 5.2** Invoices are due **net thirty (30) days** from the invoice date. Amounts unpaid after thirty (30) days accrue interest at 1.0% per month or the maximum rate permitted by law, whichever is less.

6. PRICE ESCALATION

- 6.1** On each Renewal Date, the committed annual fee shall **increase by the greater of (a) three percent (3%) or (b) the percentage change in the U.S. Consumer Price Index for All Urban Consumers (CPI-U)** over the preceding twelve (12) months, as published by the U.S. Bureau of Labor Statistics.
- 6.2** Provider shall notify Customer of the adjusted fee at least sixty (60) days before the applicable Renewal Date.

7. DATA PROTECTION AND PRIVACY

- 7.1** The **Data Processing Addendum (DPA)** attached as **Exhibit C** is incorporated by reference and governs Provider’s processing of Customer Data. In the event of conflict, the DPA controls as to data-protection matters.
- 7.2** Provider shall process Customer Data only on Customer’s documented instructions and solely to provide the Services. Provider shall not sell, share, or use Customer Data for its own purposes.
- 7.3** Provider shall maintain encryption of Customer Data **in transit (TLS 1.2+) and at rest (AES-256)**, and shall notify Customer of any confirmed personal-data breach **without undue delay and in any event within seventy-two (72) hours** of becoming aware.
- 7.4** Provider shall not transfer Customer Data outside the United States without Customer’s prior written consent and execution of appropriate transfer mechanisms.

8. CONFIDENTIALITY

Each party shall protect the other's Confidential Information using no less than reasonable care and shall not disclose it except to personnel with a need to know who are bound by confidentiality obligations.

9. TERMINATION

- 9.1** Either party may terminate for the other's material breach not cured within **thirty (30) days** of written notice.
- 9.2** Upon termination, Provider shall make Customer Data available for export for **forty-five (45) days**, after which it shall be securely deleted.

10. LIMITATION OF LIABILITY

Except for breaches of confidentiality or data-protection obligations, each party's aggregate liability shall not exceed the **fees paid in the twelve (12) months** preceding the claim. Neither party is liable for indirect or consequential damages.

11. GOVERNING LAW

This Agreement is governed by the laws of the State of Washington, without regard to conflict-of-laws principles.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Stratus Cloud Infrastructure, Inc.

Contoso Marketing, LLC

Authorized Signature

Authorized Signature

Name: Dana Whitfield

Name: Marcus Reyes

Title: VP, Enterprise Sales

Title: Chief Operating Officer

Date: June 14, 2023

Date: June 16, 2023

Confidential — Agreement No. STR-2023-0417 — Stratus Cloud Infrastructure, Inc. & Contoso Marketing, LLC
This document contains confidential and proprietary information intended only for the parties named above.